

HOUSE BILL 1070

By Zachary

AN ACT to amend Tennessee Code Annotated, Title 71,
relative to the food stamp program.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 71, Chapter 5, Part 3, is amended by
adding the following as a new section:

(a) This section is known and may be cited as the "Tennessee Health SNAP
Act."

(b) The purpose of this section is to ensure the supplemental nutrition assistance
program (SNAP) in this state aligns with its intended purpose of improving food security
and nutrition by prohibiting the purchase of candy and soft drinks with SNAP benefits.

(c) The department shall submit a request for a federal waiver to the United
States department of agriculture's food and nutrition service to seek authorization to
prohibit the use of SNAP benefits for the purchase of candy and soft drinks.

(d) The waiver request must include:

(1) A justification citing:

(A) Public health concerns;

(B) SNAP's statutory intent; and

(C) Cost savings to taxpayers;

(2) An implementation plan ensuring that existing point-of-sale systems
used by retailers in this state have the ability to properly enforce the restriction;

(3) A strategy for education and outreach informing SNAP recipients of
alternative healthy food options; and

(4) A reporting mechanism to track the impact of the waiver, including spending patterns and health outcomes.

(e) If the waiver is approved, then the department shall implement the restriction within six (6) months of receiving federal authorization.

(f) The department shall submit an annual report to the governor and the chair of the health and welfare committee of the senate and chair of the committee of the house of representatives having jurisdiction over health-related matters on the following:

(1) The status of the waiver request;

(2) Data on SNAP spending patterns in this state; and

(3) Any identified challenges or recommendations for further policy action.

(g) As used in this section:

(1) "Candy" means a preparation of sugar, honey, or other natural or artificial sweeteners in combination with chocolate, fruit, nuts, or other ingredients or flavorings in the form of bars, drops, or pieces, and does not require refrigeration; and

(2) "Soft drinks" means any non-alcoholic beverages containing natural or artificial sweeteners, except beverages that contain milk, milk products, soy, rice, or other milk substitutes, or greater than fifty percent (50%) vegetable or fruit juice by volume.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.